

Sanjay Kumar v. State of U.P. & Another

Allahabad High Court · Division Bench · 28 April 2026 · Writ - C No. 13968 of 2026 · **Writ petition disposed of; petitioner to apply in the prescribed form to the Executive Engineer under Clause 4.4 for transfer of the connection; if duly made, to be considered, the petitioner fulfilling all requirements**

HEADNOTE

A consumer who wants an electricity connection transferred into his name must apply in the prescribed form to the Executive Engineer under Clause 4.4 of the U.P. Electricity Supply Code, 2005. The writ court will not itself transfer the connection on a representation to the supply company; it will point the applicant to that procedure and, if the application is duly made, direct that it be considered, the applicant fulfilling all requirements.

FACTUAL SUMMARY

Sanjay Kumar sought a writ directing transfer of an electricity connection into his name. He had made a representation dated 16 March 2026 to respondent no. 2 (the supply company) and asked that it be acted upon. Counsel for the supply company submitted that the proper authority is the Executive Engineer and that the procedure is in Clause 4.4 of the U.P. Electricity Supply Code, 2005. Standing Counsel appeared for the State. The Court did not transfer the connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Transfer of a connection is by prescribed-form application to the Executive Engineer under Clause 4.4; the writ court will not itself transfer on a representation to the supply company

QUESTION

Where a consumer has represented to the supply company for transfer of a connection into his name, will the writ court direct the transfer, or must the consumer apply under Clause 4.4 to the Executive Engineer?

HOLDING

He must apply in the prescribed form to the Executive Engineer. The Court recorded that the proper authority is the Executive Engineer and that the procedure stands provided in Clause 4.4. A fresh application is to be properly made to the Executive Engineer in terms of that procedure. If it is duly made, it is to be considered for necessary action to transfer. The petitioner needs to fulfill all the requirements. Writ disposed of. ¶ 1-4

FLAG The Court cited Clause 4.4 as the licensee put it. Mutation/transfer of an existing connection is more typically Clause 4.44 (SCJ-174, SCJ-196: Executive Engineer; arrears to be cleared). Recorded, not merged. The order does not mention arrears, indemnity, or owner's consent.

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ seeking transfer of a connection on a representation to the supply company is disposed of by directing a prescribed-form application to the Executive Engineer under Clause 4.4; the Court does not itself transfer. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION SHOULD IN FACT BE TRANSFERRED INTO THE PETITIONER'S NAME, AND WHETHER ANY ARREARS OR OTHER CLAUSE 4.44 CONDITIONS APPLY

Left to the Executive Engineer if a Clause 4.4 application is duly made. The Court did not examine the representation dated 16 March 2026 on merits. ¶ 3-4

